

SENATE BILL 1972

By Akbari

AN ACT to amend Tennessee Code Annotated, Title 7;
Title 8; Title 38 and Title 58, relative to the
"Tennessee Veteran Protection and Due Process
Act."

WHEREAS, the General Assembly finds that:

- (1) Service in the United States armed forces represents a profound commitment to this nation and to the people of Tennessee;
- (2) Veterans, including United States citizens and lawful permanent residents, have been mistakenly detained, questioned, or targeted for immigration enforcement due to database errors, outdated records, or misidentification;
- (3) State and local participation in immigration enforcement actions involving veterans increases the risk of wrongful detention, loss of veterans' benefits, and separation from family; and
- (4) Tennessee has a compelling interest in ensuring that no veteran is subjected to immigration enforcement with state assistance without heightened due process protections; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 58, Chapter 3, is amended by adding the following as a new part:

53-3-201. Short title.

This part is known and may be cited as the "Tennessee Veteran Protection and Due Process Act."

53-3-202. Part definitions.

As used in this part:

(1) "Immigration enforcement action" means an action by federal immigration and customs enforcement agents to enforce federal immigration laws;

(2) "Proof of veteran status" includes a DD-214, military ID, VA records, or credible sworn documentation; and

(3) "Veteran" means a person who served in the United States armed forces and was discharged under honorable or general conditions.

53-3-203. Prohibition on state assistance in veteran deportation.

(a) A state or local law enforcement agency shall not assist, participate in, or facilitate an immigration enforcement action against an individual unless the requesting federal authority certifies in writing that:

(1) The individual is not a veteran of the United States armed forces; or

(2) The individual's veteran status has been reviewed and confirmed by the United States department of veterans affairs.

(b) Absent such certification, all state assistance in an immigration enforcement action must be withheld.

53-3-204. Mandatory veteran status screening.

(a) Prior to honoring any immigration detainer or transfer request, a state or local law enforcement agency shall:

(1) Ask whether the individual has served in the United States armed forces; and

(2) Conduct a good-faith review of available records to determine whether the individual is a veteran.

(b) If veteran status is indicated, the individual must not be transferred until verification is completed.

53-3-205. Judicial safeguards.

A state or local law enforcement officer shall not assist in the detention or transfer of a veteran for immigration purposes unless presented with:

- (1) A valid judicial warrant; and
- (2) Written certification from the agency requesting the transfer that veteran-specific immigration relief has been considered.

53-3-206. Access to counsel and benefits.

(a) A veteran subject to immigration proceedings while in state custody must be:

- (1) Informed of the right to consult an attorney knowledgeable in military-related immigration relief; and
- (2) Permitted reasonable access to records necessary to establish service in the United States armed forces.

(b) This part does not deny state or federal veterans' benefits pending verification.

53-3-207. Enforcement.

(a) Any evidence obtained in violation of this part is inadmissible in state proceedings.

(b) A person affected by a violation of this part may bring an action for injunctive or declaratory relief.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.